



CHAPTER lxxiv.

An Act to confer further powers on the Trent Navigation Company to make further provision with respect to the rates tolls and charges applicable to the Trent Navigation and the Newark Navigation and for other purposes. A.D. 1932.
[12th July 1932.]

WHEREAS by the Trent (Burton-upon-Trent and Humber) Navigation Act 1887 the Trent Navigation Company (hereinafter referred to as "the Company") were incorporated by the name of the Trent (Burton-upon-Trent and Humber) Navigation Company with power to purchase the undertaking of the then existing Trent Navigation Company and thereafter to carry into effect the powers theretofore vested in that Company and also the powers granted by that Act for improving the navigation of the river Trent between the place called Wilden Ferry and Gainsborough and for carrying on the business of carriers thereon and on any canals rivers or navigations communicating therewith either directly or by means of any intermediate canal river or navigation :

And whereas further powers were conferred on the Company by the Trent Navigation Act 1892 and the Trent Navigation Act 1906 and by the former Act the name of the Company was changed to "the Trent Navigation Company" :

And whereas by a lease dated the 10th July 1888 and granted in pursuance of an agreement made the 14th April 1887 between the Company and the Newark

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Act, 1932.

A.D. 1932. Navigation Commissioners (which agreement is set out
— in the schedule to the Act of 1887 and was by that
Act confirmed and made binding on the parties thereto)
the commissioners have demised to the Company for
a period of ninety-nine years from the 19th July 1887
all the rates duties and tolls leviable by the com-
missioners by virtue of the local Act 13 Geo. III c. 86
(hereinafter referred to as "the Act of 1772") intituled
"An Act for improving and completing the navigation
" of that Branch of the River Trent which runs by
" the Town of Newark-upon-Trent from a place called
" the Upper Weir in the Parish of Averham in the
" County of Nottingham to a place called the Crankleys
" in the Parish of South Muskham in the said County":

And whereas it is provided by the said agreement
that during the continuance of the said lease the said
rates duties and tolls shall be leviable and recoverable
by the Company for their own use and benefit and
all the powers duties and obligations of the said
commissioners under the Act of 1772 with respect to
the maintenance and repair and otherwise in respect
of the Newark Navigation (including the locks dams
and apparatus connected therewith) shall be exercised
and performed by the Company and all new works
which may from time to time in the opinion of the
Company be necessary shall be executed and maintained
by the Company:

And whereas by the Nottingham Corporation (Trent
Navigation Transfer) Act 1915 the portion of the Trent
Navigation lying between Trent Bridge in the city of
Nottingham and Averham Weir in the parish of Averham
in the county of Nottingham and certain property
powers and rights of the Company (defined in that
Act) relating to that portion of the Trent Navigation
were transferred to and vested in the Nottingham
Corporation:

And whereas the Company carry on business as
carriers on the Trent Navigation (including the portion
thereof transferred to the Nottingham Corporation as
aforesaid and the Newark Navigation) and on the canals
rivers and navigations communicating therewith
respectively:

And whereas the Company are empowered by
the said Acts of 1887 and 1892 to raise by the issue of

ordinary and preference shares and stock the aggregate sum of £450,000 and in pursuance of that power they have created and issued 11,977 ordinary shares of £10 each on which the sum of £119,134 has been paid up and 3,305 5 per cent. preference shares of £10 each which are fully paid up making the total amount of the paid-up capital of the Company £152,184 : A.D. 1932.

And whereas the Company are empowered by the said Act of 1906 to raise on mortgage or by the creation and issue of debenture stock a total sum equal to one-third part of the amount of the total share capital of the Company from time to time actually issued and accepted and in pursuance of that power the Company have created and issued £6,950 3½ per cent. debenture stock and £37,900 6 per cent. debenture stock but have not raised any money on mortgage :

And whereas in pursuance of section 19 of the said Act of 1915 the Company have issued to the Nottingham Corporation £10,000 5 per cent. debenture stock in consideration of the advance by the Nottingham Corporation to the Company of the sum of £10,000 in cash which sum is in addition to the total sum which the Company are empowered by the said Act of 1906 to raise on mortgage or by the creation and issue of debenture stock :

And whereas all the works authorised by the said Act of 1906 for the improvement of the navigation of the river Trent and the Newark Navigation have been constructed and since the completion thereof there has been a great increase in the traffic using the said river and navigation :

And whereas the construction of the works in this Act described for the improvement of the Newark Navigation would be of public and local advantage and be likely to result in a further increase of the traffic on the said river and navigation and it is expedient to authorise the Company to construct those works and to raise further money by borrowing and by the creation and issue of debenture stock as by this Act provided :

And whereas the rates and charges leviable by the Company as carriers on the Trent Navigation and the tolls dues and charges leviable by the Company and the Nottingham Corporation as proprietors of the Trent

A.D. 1932. — Navigation in respect of merchandise traffic conveyed by bye-traders over and in respect of vessels and pleasure boats using the Trent Navigation are prescribed by the Canal Rates Tolls and Charges No. 2 (Bridgwater &c. Canals) Order 1894 confirmed by the Canal Rates Tolls and Charges No. 2 (Bridgwater &c. Canals) Order Confirmation Act 1894 and by sections 38 and 39 of the said Act of 1906 and the rates tolls dues and charges so prescribed have been temporarily increased by directions given by the Minister of Transport under section 3 of the Ministry of Transport Act 1919 and dated the 24th September 1920 :

And whereas by the Canals (Continuance of Charging Powers) Acts 1922 and 1924 and certain Expiring Laws Acts and finally by the Expiring Laws Continuance Act 1931 the increased rates tolls dues and charges authorised by the said directions have been from time to time continued in force and will expire on the 31st December 1934 unless further continued by Parliament :

And whereas it is expedient that provision be made as in this Act contained with reference to the rates tolls dues and charges to be leviable hereafter by the Company as carriers of merchandise traffic and by the Company and the Nottingham Corporation in respect of merchandise traffic conveyed by bye-traders over and in respect of vessels and pleasure boats using the Trent Navigation :

And whereas it is expedient to confer further powers on the Company as in this Act contained and to enact the other provisions of this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and plans of the lands which may be taken compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands respectively have been deposited with the respective clerks of the Nottinghamshire County Council and the Leicestershire County Council and with the town clerk of the city of Nottingham and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

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PART I.

PRELIMINARY.

1. This Act may be cited as the Trent Navigation Act 1932. Short title.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Works and lands.

Part III.—Financial provisions.

Part IV.—Administrative provisions.

Part V.—Rates tolls and charges.

Part VI.—Miscellaneous.

3. The following Acts and parts of Acts so far as applicable for the purposes of this Act and not inconsistent with the provisions of this Act or of any other enactment relating to the Company are hereby incorporated with and form part of this Act :—

Incorpora-
tion of
Acts.

The Companies Clauses Consolidation Act 1845 ;

Part III (Debenture stock) of the Companies Clauses Act 1863 (except the words "and to the same amount as" in section 22 of that Act) as amended by subsequent Acts ;

The Lands Clauses Acts with the following exception and modification :—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act ;

(b) The bond required by section 85 of the said Act of 1845 shall be under the seal of the Company and shall be sufficient without the sureties mentioned in that section ;

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The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof :

Provided that for the purposes of this Act in the said incorporated provisions of the Railways Clauses Consolidation Act 1845 the expressions "the railway" "the centre of the railway" and "the boundaries of the railway" mean respectively the new works and the centre lines and the boundaries of those works respectively.

Interpreta-
tion.

4. In this Act unless otherwise provided or the subject or context otherwise requires—

- (a) the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings;
- (b) "the Company" means the Trent Navigation Company;
- (c) "the Act of 1887" means the Trent (Burton-upon-Trent and Humber) Navigation Act 1887;
- (d) "the Charges Order" means the Canal Rates Tolls and Charges No. 2 (Bridgwater &c. Canals) Order 1894;
- (e) "the Act of 1906" means the Trent Navigation Act 1906;
- (f) "the Act of 1772" means the recited local Act 13 Geo. III c. 86;
- (g) "the county council" means the county council of the administrative county of Nottingham;
- (h) "the Nottingham Corporation" means the lord mayor aldermen and citizens of the city of Nottingham and county of the same city;
- (i) "the Newark Corporation" means the mayor aldermen and burgesses of the borough of Newark;
- (j) "the Catchment Board" means the River Trent Catchment Board;
- (k) "the Newark Navigation Commissioners" means the commissioners from time to time appointed in pursuance of the Act of 1772;

- (l) "the Newark Navigation" means the navigation of the Newark Navigation Commissioners; A.D. 1932. —
- (m) "the navigation" means the navigation as defined in the Trent Navigation Act 1858 and all other canals cuts and works of the Company and of the Nottingham Corporation forming part of or connected with the navigation as so defined and includes the Newark Navigation so long as the lease from the Newark Navigation Commissioners to the Company dated the tenth day of July eighteen hundred and eighty-eight and extended and amended by this Act of the rates duties and tolls leviable by those commissioners shall be subsisting;
- (n) "the corporation's navigation" means so much of the navigation as was transferred to the corporation by the Nottingham Corporation (Trent Navigation Transfer) Act 1915;
- (o) "the Company's navigation" means the whole of the navigation exclusive of the corporation's navigation;
- (p) "the Newark water mill" means the mill in the borough of Newark which at the passing of this Act belongs or is reputed to belong to and is occupied by Messrs. Thomas Parnham and Son;
- (q) "the river Devon" includes the stream which leaves the Newark Navigation at the stone bridge carrying the hauling path over that stream near or at the Newark water mill and rejoins the Newark Navigation below the existing Newark Town lock;
- (r) "the new works" means the works authorised by section 5 (Power to make works) of this Act;
- (s) "the Newark Town lock works" means the works authorised by section 5 (Power to make works) of this Act under the heading "Newark Town lock works";
- (t) "the existing Newark hauling path bridge" means the bridge carrying the existing hauling path of the Newark Navigation over the river Devon;

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- (u) “the new Newark hauling path bridge” means the bridge to be constructed in connection with the diversion of the hauling path of the Newark Navigation (forming part of the Newark Town lock works) for carrying the diverted hauling path over the river Devon;
- (v) “the undertaking” means the undertaking of the Company as authorised from time to time;
- (w) “pleasure boat” includes any ship launch house-boat boat randan wherry skiff dingey shallop punt canoe or yacht however navigated, or propelled not being used solely as a tug or for the carriage of wares or merchandise of any description;
- (x) “boat” and “vessel” mean any ship yacht lighter keel sloop barge launch compartment boat pleasure boat or other boat randan wherry skiff dingey shallop punt canoe raft float of timber and other craft of every description however navigated propelled or moved;
- (y) “the Minister” means the Minister of Transport;
- (z) “the appointed day” means the first day of January nineteen hundred and thirty-three.

PART II.

WORKS AND LANDS.

Power to
make
works.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and situations and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections the following works :—

Newark Town lock works.

In the borough of Newark and the parish of Averham in the rural district of Southwell—

- (1) A widening embanking and deepening of the Newark Navigation on its north-western side between points situate respectively about 172 yards and 52 yards south-westwards of the south-western gates of the existing Newark Town lock :
- (2) A cut with a lock on the north-western side of the said existing lock extending from

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—

the termination of the widening embanking and deepening above described to the river Devon near its confluence with the Newark Navigation and a narrowing of the Newark Navigation on its north-western side between points situate respectively about 53 yards and 8 yards south-westwards of the said gates of the existing Newark Town lock :

- (3) A diversion of the hauling path of the Newark Navigation between the commencement of the widening embanking and deepening above described and a point on the existing hauling path 20 yards or thereabouts southwards of the fence separating the properties respectively numbered 258 and 255 on the Ordnance map (scale 1/2500) edition of 1920 Nottinghamshire sheet XXXV.3. together with a bridge for carrying the diverted hauling path over the river Devon and the pulling down and removal of the existing Newark hauling path bridge :
- (4) A diversion of the river Devon between points situate respectively about 100 yards westwards and 65 yards north-eastwards of the north-eastern end of the existing hauling path bridge :
- (5) A diversion and embanking on both sides of the mill race leading from the Newark water mill in a north-easterly direction to the river Devon commencing at a point on the south-eastern bank of the mill race about 76 yards westwards of the south-western end of the existing hauling path bridge and terminating on the north-western side of the cut above described at its north-eastern end.

Newark mill bridge culvert.

In the borough of Newark—

A lowering of the storm water culvert of the Newark Corporation between a point in Mill Lane about 64 yards from the centre of Mill Gate and a point about 27 yards north-westwards of the first-mentioned point.

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Subsidiary
works.

6. The Company may on over or under any lands for the time being belonging to them make and maintain all such bridges arches culverts drains aqueducts sewers locks basins sluices gates banks weirs dams retaining or other walls dolphins fenders jetties landing places roads hauling-paths passages fences lock-keepers' bridge-keepers' and collectors' houses and other buildings works and conveniences as may be necessary or convenient in connection with or subsidiary to the new works or any of them and may do all other acts necessary for making maintaining altering or repairing the new works but nothing in this section shall exonerate the Company from any action indictment or other proceeding for nuisance if any nuisance be caused or permitted by them.

Power to
deviate.

7. In the construction of the new works the Company may deviate laterally to any extent within the limits of deviation shown on the deposited plans and vertically from the levels shown on the deposited sections to any extent not exceeding three feet upwards or downwards.

Period for
completion
of works.

8. If the new works are not completed within eight years from the passing of this Act then on the expiration of that period the powers given by this Act for the making thereof shall cease except so much thereof as is then completed.

Power to
divert
waters.

9. Subject to the provisions of this Act the Company may divert into and for the purposes of any works executed by them under any of the powers of this Act the waters of the Newark Navigation.

Power to
stop up
hauling
paths and
certain
locks.

10. Notwithstanding anything in any other Act the following provisions shall have effect:—

(1) Where under the powers of this Act any portion of the hauling path of the Newark Navigation shall be diverted then from and after the completion and opening for use as a hauling path of the new portion of hauling path—

(i) all public rights (if any) of way or passage over or along the portion of the existing hauling path for which the new portion of hauling path shall have been

substituted shall be absolutely extinguished; A.D. 1932.
and

(ii) the new portion of hauling path shall be subject to all and the like public rights (if any) of way or passage over or along the same as those to which the portion of the existing hauling path for which the new portion of hauling path shall have been substituted were subject immediately before the completion and opening for use as a hauling path of the new portion of hauling path :

- (2) From and after the completion and opening for traffic of the works Nos. (1) (2) and (3) forming part of the Newark Town lock works neither the Company nor the Newark Navigation Commissioners shall be under any obligation to maintain or work the existing Newark Town lock but the Company may discontinue the user of and stop up that lock and may remove any of the works forming part thereof or used in connection therewith and when and so soon as the Company shall have stopped up the said lock all rights (if any) of the public to use or to pass by through or over the lock shall be absolutely extinguished.

11.—(1) In this section—

“the new lock” means the lock forming part of the Newark Town lock works;

“the existing lock” means the existing Newark Town lock;

“the existing hauling path” means the existing hauling path of the Newark Navigation;

“the diverted hauling path” means the hauling path of the Newark Navigation as diverted under the powers of this Act;

“lock entry” means the passage leading from Mill Gate to the south-eastern end of the existing lock;

“the Tolney Lane footpath” means the footpath extending from the north-easterly end of the existing Newark hauling path bridge to Tolney Lane.

Company
to provide
substituted
footpath at
Newark.

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(2) During the construction and after the completion of the Newark Town lock works the Company shall (notwithstanding anything in this Act) keep open a footpath between lock entry and the Tolney Lane footpath and passing over the sites of the existing lock and the new lock and thence along the diverted hauling path the new Newark hauling path bridge and the northern bank of the river Devon as diverted under the powers of this Act.

The footpath to be provided by the Company under this subsection shall be subject to any rights of passage to which the existing footpath extending from lock entry to the Tolney Lane footpath across the existing lock and along the existing hauling path and the existing Newark hauling path bridge is subject at the passing of this Act.

(3) (a) The Company at any time after they have opened for use the footpath mentioned in subsection (2) of this section may stop up and extinguish all rights of way over so much of the Tolney Lane footpath as is shown on the deposited plans as intended to be stopped up. Provided that such stopping up shall not take place until a substituted footpath connecting the Tolney Lane footpath with the existing hauling path on the western side of the Newark Navigation has been provided by the Company and completed to the satisfaction of the county council and the rural district council of Southwell and is open for use or in the case of difference between the Company and the county council or the said rural council until two justices acting for and residing in the county of Nottingham shall have certified that the substituted footpath has been completed to their satisfaction and has been opened for use.

(b) Before applying to the justices for their certificate under this subsection the Company shall give to the county council and the said rural council not less than fourteen days' notice of their intention to apply for it.

(c) The substituted footpath shall be subject to any rights of passage to which the portion of the existing Tolney Lane footpath to be so stopped up as aforesaid shall be subject immediately before such stopping up.

(d) As from the completion of the substituted footpath to the satisfaction of the county council and the said rural council or as from the date of the certificate of the said justices all rights of way including public rights of way (if any) over and along the portion of the existing footpath which shall be so stopped up shall be extinguished. A.D. 1932.
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(4) The Company shall make compensation to all persons interested in respect of any private rights of way extinguished by virtue of subsection (3) of this section unless alternative equivalent rights of way are afforded by means of the footpath mentioned in subsection (2) of this section or along the substituted footpath to be provided under the said subsection (3) Any dispute between the Company and any person entitled to any such private right of way as aforesaid as to what compensation (if any) is payable under this subsection shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

12. No works made erected constructed altered or maintained under the authority of this Act shall be made use of by any person as the means or for the purpose of taking or to facilitate the taking of salmon or other fish eels or lamprey. Works not to be used for fishing.

13. Nothing in this Part of this Act shall exempt the Company from the obligations imposed by sections 19 and 23 of the Salmon and Freshwater Fisheries Act 1923. Saving as to Salmon and Freshwater Fisheries Act 1923.

14. Subject to the provisions of this Act the Company may enter upon take hold and use such of the lands delineated on the deposited plans relating to the new works and described in the deposited book of reference as may be required for the purposes of the new works or for other purposes of this Act or of the undertaking including the erection or construction of warehouses workshops sheds houses buildings cottages depots wharves and other works and conveniences and the deposit of spoil Provided that nothing in this section shall authorise the Company to acquire any of Power to acquire lands for works &c.

A.D. 1932. — the lands delineated on sheets numbered 1 and 3 of the deposited plans with reference to the works described on those sheets as “Beeston lock works” and “Wilford lock works.”

Power to
acquire
additional
lands.

15.—(1) Subject to the provisions of this Act the Company may enter upon and take and may hold and use for the purposes of the undertaking all or any of the following lands delineated on the deposited plans and described in the deposited book of reference or any outstanding estate and interests in those lands not belonging to the Company :—

In the administrative county of Leicester—

- (a) A plot of land in the parish of Castle Donington in the rural district of Castle Donington situate between the river Trent and the road leading from Leicester to Derby and comprising the properties numbered 771 771a 781 and 783 in that parish on the Ordnance map (scale 1/2500) edition of 1921 Leicestershire sheet V. 9 and V. 13.

In the administrative county of Nottingham—

- (b) The island in the river Devon adjoining and situate between the two weirs at the Newark water mill which island is situate partly in the borough of Newark and partly in the parish of West Newark in the rural district of Newark and is at the passing of this Act leased to and occupied by the Company;
- (c) A plot of land in the borough of Newark on the south-eastern side of the Newark Navigation and south-western side of Mill Lane which plot is at the passing of this Act leased to the Company and used by them as a coal wharf and store and contains about 12·8 perches;
- (d) A plot of land in the borough of Newark on the south-eastern side of the existing Newark Town lock and comprising the site of the lock-keeper's house and adjoining land which plot of land is at the passing of this Act leased to and occupied by the Company and contains about 12·2 perches;

- (e) A plot of land in the borough of Newark situate between the Newark Navigation and Mill Gate and adjacent to and on the north-eastern side of the Company's goods depot and containing about 32·5 perches. A.D. 1932. —

(2) The acquisition by the Company of the freehold of the plot of land (d) described in subsection (1) hereof shall not prejudice or restrict the continued exercise by the Company their tenants servants and others of the rights of way and passage on foot along over and upon the pathway and through the covered passage or entry between that plot of land and Castle Gate which rights were granted to the Company by the lease to them of that plot of land and other lands from the Most Noble Henry Pelham Archibald Douglas Duke of Newcastle dated the twenty-fifth day of October nineteen hundred and five.

16. If there is any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the place in which the lands are situate for the correction thereof and if it appears to the justices that the omission or mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate or a copy thereof shall be deposited with the clerk of the county council for the administrative county in which the lands are situate and a duplicate thereof shall be deposited with the clerk of the council for the county district in which the lands are situate and if the lands are situate in a rural parish having a parish council also with the clerk of that council and such certificate or copy and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with the certificate.

Correction
of errors in
deposited
plans and
book of
reference.

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Power to
enter on
property for
survey and
valuation.

17. The Company and their surveyors officers and workmen and any person duly authorised by them in writing may at all reasonable times on giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Compensa-
tion in case
of recently
acquired
interest.

18. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the arbitrator or other tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the twentieth day of November nineteen hundred and thirty-one if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Persons
under
disability
may grant
easements
&c.

19. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
make agree-
ments with
landowners
&c.

20. The Company may subject to the provisions of this Act enter into and carry into effect agreements with any person being the owner of or interested in any lands houses or property abutting on any portion of the

new works or of the lands which the Company may acquire under the powers of this Act with respect to the sale by the Company to such person of any lands or property for such consideration as may be agreed upon between the Company and such person and the Company may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or property required by the Company for the purposes of this Act. A.D. 1932.
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21. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease on the first day of October nineteen hundred and thirty-five. Period for compulsory purchase of lands.

22. All private rights of way over any lands which the Company are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Company be extinguished. Provided that the Company shall make compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. Provided also that this section shall not apply to any private rights of way to which the provisions of subsection (4) of section 11 (Company to provide substituted footpath at Newark) of this Act apply. Extinction of private rights of way.

23. The execution of the works and the exercise of the powers authorised by this Part of this Act shall not be restricted by anything in any town planning scheme prepared or adopted or made under the Town Planning Act 1925 or under any Act hereafter passed amending or superseding that Act or in any preliminary statement or draft scheme or map or other document prepared or adopted in connection with any such town planning scheme or in any order made under section 4 of the Town Planning Act 1925 or under any enactment hereafter passed superseding that section. Exemption from town planning schemes &c.

24.—(1) The agreement made the first day of June nineteen hundred and thirty-two between the Company and the Catchment Board of which a copy is set forth in the First Schedule to this Act is hereby sanctioned and confirmed and due effect shall be given thereto accordingly. Confirmation of agreement with River Trent Catchment Board.

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(2) Section 61 of the Land Drainage Act 1930 shall apply for the protection of the London and North Eastern Railway Company in relation to any works carried out in pursuance of clauses 2 3 and 4 of the said agreement and nothing contained in clauses 7 and 8 of that agreement shall prejudice any opposition of the said railway company to any such Bill as is referred to in those clauses.

For protec-
tion of River
Trent
Catchment
Board.

25. Notwithstanding anything in this Act or shown on the deposited plans and sections the following provisions for the protection of the Catchment Board shall unless otherwise agreed in writing between the Company and the Catchment Board apply and have effect :—

- (1) The Company before commencing to execute any of the new works shall submit to the Catchment Board detailed plans sections and working drawings thereof for their reasonable approval. If the Catchment Board shall not within twenty-eight days after the submission to them of any such plans sections and drawings signify to the Company in writing their approval or disapproval thereof they shall be deemed to have approved thereof :
- (2) The new works shall not be executed otherwise than in accordance with such plans sections and drawings as may be approved by the Catchment Board or if such approval be withheld as may be settled by arbitration as hereinafter provided and shall be executed to the reasonable satisfaction of the Catchment Board and under the superintendence of the engineer to the Catchment Board if the engineer elect to superintend after receiving reasonable notice of the date when the works are to be commenced :
- (3) The Company shall during the execution of the new works comply with any reasonable directions given by the said engineer with a view to minimising any interference with the free flow of water in the main river of the Catchment Board :

- (4) If by reason of the execution repair or main-
tenance of the new works or any of them or
of the failure of any of those works or of the
maintenance thereof the channel or banks of
the main river shall at any time be injured
or damaged such injury or damage shall be
forthwith made good by the Company to the
reasonable satisfaction of the said engineer
and if the Company fail so to do the Catch-
ment Board may make good the same and
recover the reasonable cost thereof from the
Company : A.D. 1932.
- (5) If at any time any work is done or executed or
proposed to be done or executed by the Company
under this Act which in the opinion of the
Catchment Board injuriously affects or will
injuriously affect the drainage of land within
the district of the Catchment Board or any
works (whether in existence or proposed) of
the Catchment Board for the drainage of such
land the Catchment Board may give notice in
writing to the Company requiring them to alter
such work or not to do or execute the proposed
work as the case may be and unless the Company
be willing to comply with such notice the
matter shall be referred to arbitration as in
this section provided and the arbitrator shall
decide what shall be done in the premises and
his decision shall be final :
- (6) Any matter or thing by this section referred to
or required to be settled by arbitration and
any dispute or difference which may arise under
this section between the Catchment Board or
their engineer and the Company (save as to
the construction of this section) shall be referred
to and determined by an engineer or other fit
person to be agreed between the Catchment
Board and the Company or (failing agreement)
to be appointed on the application of either
party (after notice in writing to the other) by
the President of the Institution of Civil Engineers
and subject as aforesaid the provisions of the
Arbitration Act 1889 shall apply to the reference
and determination :

A.D. 1932.

- (7) For the purposes of this section the expression "the new works" includes any buildings works and conveniences erected or made under the powers of section 6 (Subsidiary works) of this Act in connection with or subsidiary to the works authorised by section 5 (Power to make works) of this Act.

For protec-
tion of
Notting-
hamshire
County
Council and
other
authorities.

26. For the protection of the county council and the district councils of the districts in which the works authorised by this Act in the administrative county of Nottingham will be situate the following provisions shall unless otherwise agreed in writing between the parties apply and have effect:—

- (1) If by reason of the construction of any works executed by the Company in pursuance of this Act any county road or county bridge vested in the county council or any public footpath in the said county shall at any time be washed away or damaged the Company shall at their own cost when required by the county council or other responsible authority restore such road or bridge or footpath and make good the damage or at the option of the Company make full compensation in respect thereof:

Provided that nothing in this subsection shall impose on the Company any obligation to restore any footpath diverted for the purpose of executing the works by this Act authorised:

- (2) If by reason or in consequence of the works authorised by this Act the county council shall be required to construct or reconstruct any bridge over the navigation of a greater length than would otherwise have been the case or if the Company desire such bridge to have a navigable opening of a greater span than one hundred feet or a greater headway above the flood level of October eighteen hundred and seventy-five than eight feet then the Company shall pay to the county council the amount of any increase in the cost of the construction or reconstruction of such bridge which shall be due to such greater length greater span or greater headway:

- (3) If in the construction repair alteration or maintenance of any lock cut or other work authorised by this Act in the administrative county of Nottingham any injury or damage is caused to any bridge or culvert carrying any road highway sewer or other pipe across the Newark Navigation the Company shall make good to the county council or other the body in whom such bridge or culvert is vested any such injury or damage as aforesaid : A.D. 1932.
- (4) Any dispute which may arise under this section shall be referred to and determined by an engineer or other person to be agreed between the parties to the dispute or failing such agreement to be appointed on the application of any of the parties (after notice in writing to the other or others of them) by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference and determination.

27. The following provisions with respect to the Newark Navigation shall have effect and be binding upon the Company and the Newark Navigation Commissioners (in this section referred to as "the commissioners") :— Provisions
as to
Newark
Navigation.

- (1) The period of the lease dated the tenth day of July eighteen hundred and eighty-eight and granted by the commissioners to the Company in pursuance of the agreement set out in the schedule to the Act of 1887 (hereinafter respectively referred to as "the existing lease" and "the 1887 agreement") of the rates duties and tolls leviable by the commissioners is hereby extended until the expiration of ninety-nine years from the passing of this Act and all the provisions of the existing lease and all the provisions of the 1887 agreement which apply to the existing lease shall subject to the provisions of subsection (7) of section 44 (Provisions affecting Newark Navigation Commissioners) of the Act of 1906 continue to apply to the existing lease until the expiration of the extended term thereof under this subsection :

A.D. 1932.

Provided that every reference in the existing lease and in the 1887 agreement to the rates duties and tolls leviable by virtue of the Act of 1772 shall be construed as a reference to the rates duties and tolls leviable under that Act as amended by the Charges Order and by Part V of this Act or by any order made by the Minister under section 55 (Revision of maximum rates tolls and wharfage charges) of this Act :

- (2) Every reference in the said section 44 to the existing lease or any future lease to the Company of the rates duties and tolls aforesaid shall be deemed to refer to the existing lease as extended by this section :
- (3) On the expiration or sooner determination of the existing lease as extended by this section the Company shall convey and they are hereby authorised to convey to the commissioners without requiring any payment or consideration from them the cut and lock forming part of the Newark Town lock works together with the ground and soil forming the site thereof and of the hauling path of the Newark Navigation as diverted under the powers of this Act (so far as such ground and soil shall not then already be the property of the commissioners) to be held by the commissioners as part of the Newark Navigation :
- (4) As from the completion of the diversion of the hauling path of the Newark Navigation authorised by section 5 (Power to make works) of this Act all the rights and powers of the commissioners over and in respect of the portion of the existing hauling path so diverted and the existing Newark hauling path bridge shall (subject to the provisions of the existing lease) extend and apply to and be exerciseable by the commissioners over and in respect of the new portion of hauling path and the new Newark hauling path bridge in lieu of the portion of the existing hauling path for which the new portion of hauling path is substituted and the existing Newark hauling path bridge :

- (5) If the Company have not prior to the date of A.D. 1932.
the expiration or sooner determination of the
existing lease as extended by this section
stopped up the existing Newark Town lock
in pursuance of the powers of this Act the
Company shall forthwith after that date at
their option either stop up the existing lock
or put that lock into proper repair to the
reasonable satisfaction of the commissioners :
- (6) Any dispute between the Company and the
commissioners under this section shall be deter-
mined in the manner mentioned in clause 10 of
the 1887 agreement.

28. Notwithstanding anything in this Act or shown For protec-
tion of
Newark
Corporation.
on the deposited plans and sections the lowering of
the storm water culvert of the Newark Corporation
authorised by section 5 (Power to make works) of this
Act under the heading "Newark mill bridge culvert"
shall not except with the consent in writing of the
Newark Corporation be executed by the Company other-
wise than in accordance with the plan and section signed
in duplicate by John Harrison Clarke on behalf of the
Newark Corporation and John Turle Evans on behalf of
the Company and deposited as to one copy at the town
clerk's office Newark and as to the other copy at the
Company's head office at Nottingham.

29. For the protection of the county council of For protec-
tion of
Leicester-
shire County
Council.
the administrative county of Leicestershire (in this
section referred to as "the county council") the following
provisions shall unless otherwise agreed between the
county council and the Company have effect :—

(1) In this section—

"the main road" means the road between Derby
and Leicester (A.6);

"the signed plan" and "the signed cross section"
respectively mean the plan and the cross
section signed in duplicate by John Eaton
Blackwall on behalf of the county council and
John Turle Evans on behalf of the Company
and deposited as to one copy at the office of
the county council at Leicester and as to the
other copy at the Company's head office at
Nottingham:

A.D. 1932.

- (2) If the Company acquire the land in the parish of Castle Donington described in paragraph (a) of subsection (1) of section 15 (Power to acquire additional lands) of this Act and if at any time between the acquisition of this land by the Company and the first day of January nineteen hundred and thirty-five the county council serve on the Company notice in writing that they desire for the purpose of widening the main road to acquire the portion of the said land which is situate to the south-westwards of the line marked "limit of deviation" on the signed plan (which portion of the said land is hereinafter referred to as "the specified land") or any part of the specified land the Company shall sell to the county council and the county council shall purchase the specified land or so much thereof as the county council may in the said notice state that they require to purchase at such price as may be agreed between the county council and the Company or failing agreement be determined by arbitration as hereinafter provided :
- (3) Notwithstanding anything in this Act the Company shall not prior to the first day of January nineteen hundred and thirty-five erect any building execute any work or do any other act or thing on the specified land which would render the widening of the main road over any part of the specified land more expensive or difficult :
- (4) The Company shall not object to the raising of the level of the entrance to the site of the former Cavendish Bridge Brewery as shown on the signed cross section if such raising is rendered necessary by the widening of the main road or the construction of a bridge over the river Trent and such raising shall be carried out by and at the expense of the county council to the reasonable satisfaction of the Company :
- (5) Any dispute between the county council and the Company under this section shall be referred to and settled by a single arbitrator to be agreed between the parties or failing agreement to be appointed on the application of either party

(after notice in writing to the other of them) A.D. 1932.
by the President of the Surveyors' Institute and
subject thereto the provisions of the Arbitration
Act 1889 shall apply to the reference.

30. The Company shall not in the construction of the new works or in the exercise of any of the powers conferred by this Act interfere with any electric lines or other works of the Central Electricity Board otherwise than in accordance with and subject to the provisions of section 15 of the Electric Lighting Act 1882 and those provisions shall be deemed for the purposes of this section to extend to and include any electric lines or other works of that board placed above ground.

For protec-
tion of Cen-
tral Elec-
tricity
Board.

31. The Company shall not in the construction of the new works or in the exercise of any of the powers conferred by this Act interfere with any electric lines or other works of the Derbyshire and Nottinghamshire Electric Power Company otherwise than in accordance with and subject to the provisions of section 15 of the Electric Lighting Act 1882 and section 17 of the schedule to the Electric Lighting (Clauses) Act 1899.

For protec-
tion of
Derbyshire
and
Notting-
hamshire
Electric
Power
Company.

PART III.

FINANCIAL PROVISIONS.

32. The Act of 1906 shall be read and have effect as though in section 22 (Power to borrow) of that Act the words "one-half" were substituted for the words "one third part" and the powers of the Company under the Act of 1906 to borrow money on mortgage of the undertaking and to create and issue debenture stock shall be increased accordingly.

Increase of
borrowing
powers.

33.—(1) The Company may in addition to and independently of any other borrowing power under this or any former Act and without being required to obtain a certificate of a justice under the fortieth section of the Companies Clauses Consolidation Act 1845 from time to time borrow on mortgage of the undertaking any sum or sums not exceeding in the whole forty thousand pounds to be applied in or towards defraying the cost of the execution of the new works and the exercise of the powers conferred by this Act.

Power to
borrow for
develop-
ment.

A.D. 1932.
—

(2) All mortgages granted under the powers of this section and all debenture stock issued under the authority of this Act in respect of the powers of borrowing conferred by this section shall be designated "Trent Navigation development loan."

Power to
issue debenture
stock.

34. The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 as incorporated with this Act and of section 23 (Debenture stock) of the Act of 1906.

Redeem-
able pre-
ference
stock and
debenture
stock.

35.—(1) In this section and the next following section of this Act unless the context otherwise requires—

"Stock" means and includes preference shares or stock and debenture stock;

"Issue" includes re-issue;

"Redeemable stock" means any stock issued under the powers of this section so as to be redeemable;

"Redeemed stock" means any redeemable stock which has been redeemed and is available for issue under the provisions of this section.

(2) Subject to the provisions of this section the directors may from time to time by virtue of this Act and without further or other sanction issue so as to be redeemable any stock created by the Company after the passing of this Act under the powers of any former Act or of this Act or of any subsequent Act and any redeemed stock. Provided that no redeemed stock shall be issued except for the purpose of effecting the redemption of redeemable stock under the provisions of this section unless the issue is authorised by a resolution of the Company passed at an extraordinary meeting convened for the purpose.

(3) Redeemable stock may be redeemed either by paying off the stock or by issuing to the holder of the stock (subject to his consent) other stock or new ordinary shares or ordinary stock in substitution therefor and for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock the Company may create new stock or new ordinary shares or ordinary stock or the directors may issue any redeemed

stock so as to be redeemable or irredeemable as they may think fit Provided that— A.D. 1932.

- (a) no new stock or ordinary shares or ordinary stock shall be created nor shall any redeemed stock be issued so as to make the total amount of any particular class of stock or of ordinary shares or ordinary stock exceed the amount of shares or stock of that class which the Company are for the time being authorised to create except during any necessary interval between the creation or (in the case of redeemed stock) the issue of the stock and completion of the redemption of the redeemable stock for the purpose of redeeming which the stock of such particular class or ordinary shares or ordinary stock is proposed to be so created or issued; and
- (b) during such interval as aforesaid the amount raised by means of any preference or ordinary shares or preference or ordinary stock so created or issued shall not be deemed to be capital raised for the purpose of any enactment regulating the borrowing powers of the Company.

(4) When any redeemable stock has been redeemed the amount (exclusive of any sum obtained by way of premium) last raised by its issue shall cease to be taken into account in calculating the extent to which the powers of the Company of raising money by the creation and issue of capital or by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock have been or may be exercised but nothing in this subsection or done in pursuance thereof shall affect the validity of any mortgage or debenture stock of which the grant or issue by the Company was lawful in the circumstances existing at the date of such grant or issue Provided that the nominal amount of any stock issued solely in substitution for other stock shall be deemed to be the amount raised by such issue.

(5) Redeemable stock shall bear such rate of dividend or interest and shall be redeemable at such time and in such manner and subject otherwise to such terms and conditions as the directors may before the issue thereof determine Provided that the terms and conditions of redemption upon which any redeemable stock is issued

A.D. 1932. shall be stated in any prospectus or other document issued by the Company offering such stock for sale or subscription and in the certificates of such stock and no term or condition of redemption which is not so stated shall be binding upon the holder of the stock.

For appoint-
ment of
receiver.

36. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver but in order to authorise the appointment of a receiver in respect of (a) arrears of interest only and (b) arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less in the whole than (a) when the application is in respect of arrears of interest only one hundred pounds and (b) when it is in respect of arrears of principal ten thousand pounds.

Power to
purchase
debenture
stock

37.—(1) The Company may at any time purchase by agreement any debenture stock (whether redeemable or irredeemable) of the Company and for that purpose may apply any moneys for the time being in their hands which they are entitled to apply to capital purposes including the proceeds of any sale (whether heretofore made or hereafter to be made by the Company) of any surplus lands warehouses buildings or other properties of the Company and any investments from time to time representing any such proceeds.

(2) Any debenture stock purchased under the provisions of this section may at the option of the directors be retained by the Company and registered in the name of the Company or be at any time cancelled and extinguished :

Provided that notwithstanding anything in any previous Act relating to the Company or in this Act or in any enactment incorporated with any such Act any debenture stock so retained by and registered in the name of the Company shall not whilst so retained and registered have priority as respects principal or interest against the Company and the property from time to time of the Company liable thereto over any other claims on account of any debts incurred or engagements entered into by the Company.

(3) If any debenture stock so purchased is retained by and registered in the name of the Company the

Company may from time to time sell or otherwise dispose of such debenture stock at such price and in such manner as the directors may think best in the interests of the Company. A.D. 1932.

(4) If any debenture stock so purchased is cancelled and extinguished the amount thereof shall be deemed to be money borrowed and paid off by the Company within the meaning of section 39 of the Companies Clauses Consolidation Act 1845 and the provisions of that section as to re-borrowing by the Company shall apply accordingly.

38.—(1) The Company may for the purposes of or in connection with the undertaking borrow or raise money on temporary loans from bankers by means of overdrafts or otherwise Provided that the aggregate amount outstanding at any one time of the moneys so borrowed or raised and the moneys borrowed under the section of this Act of which the marginal note is “Power to borrow for development” shall not exceed sixty-five thousand pounds. Company may incur temporary loans.

(2) The power conferred by this section shall be in addition to any power for the time being of the Company to borrow on mortgage of the undertaking or to raise money by the creation and issue of debenture stock.

39. Notwithstanding anything in any former Act relating to the Company the Company may apply for any of the purposes of this Act to which capital is properly applicable any money which under any such former Act or under this Act they are authorised to raise whether by shares or stock or borrowing or debenture stock and may also apply any capital money raised under this Act for any of the purposes of any former Act relating to the Company to which capital is properly applicable. Application of moneys.

40.—(1) Any ordinary stock preference stock or debenture stock (all of which are in this section included in the expression “stock”) of the Company may be issued and be held in amounts of one pound or of any integral number of pounds and not otherwise and the Company shall not be under any obligation to register a transfer of any such stock which would make the holding of stock of that class of the transferor or the transferee Minimum amounts of holdings of stock.

A.D. 1932. — less than one pound or other than an integral number of pounds.

(2) Notice of this enactment so far as applicable shall be stated in all certificates of stock of the Company issued after the passing of this Act.

Power to
invest
money.

41. The Company may invest any money not for the time being required for any of the purposes of the undertaking in any investments in which trustees are authorised by law to invest or in such other manner as shall be authorised by a resolution of the Company in general meeting.

PART IV.

ADMINISTRATIVE PROVISIONS.

Ordinary
meetings.

42. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the ordinary meetings of the Company shall (unless the Company by a resolution of a general meeting otherwise determine) be held once only in each year in the month of March or April or in such other month as the directors may from time to time prescribe and at such place and time as the directors may from time to time determine.

Interim
dividends
and annual
accounts.

43. If and so long as the ordinary meetings of the Company shall be held once only in each year the following provisions shall have effect :—

- (a) It shall be lawful for the directors to pay in any year an interim half-yearly dividend on the ordinary and preference capital of the Company out of the profits of the Company without the sanction or direction of a general meeting;
- (b) The Company and the directors shall not be required to make up a half-yearly balance sheet and accounts; and
- (c) The balance sheet and accounts made up by them in any year in accordance with section 116 of the Companies Clauses Consolidation Act 1845 shall relate to the transactions of the Company in the course of the preceding year.

As to
directors.

44.—(1) As from the passing of this Act the number of the directors shall be six but the Company may from time to time vary the number between a minimum of five and a maximum of nine.

A.D. 1932.

(2) The qualification of a director shall be the possession in his own right of ordinary and preference shares and stock in the capital of the Company or of any one or more of those classes of capital of a total nominal amount of not less than five hundred pounds.

(3) The quorum of a meeting of the directors shall be such number (not being less than three) as the directors may from time to time determine.

(4) Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected at a general meeting a director of the Company unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary or left at the office of the Company ten days at least before the day of election.

(5) Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract Provided that—

(a) if a director is or becomes interested in any contract with the Company (whether such interest shall arise before or after his appointment as a director) the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment; and

(b) no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity.

A.D. 1932.

(6) If any director shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend a meeting of directors for six months (unless such neglect be occasioned by illness or other reasonable cause allowed by the directors) the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(7) The continuing directors may act notwithstanding any vacancy in their body but if at any time the number of the directors holding office shall be less than five the directors shall not so long as the number is less than five act otherwise than for the purpose of filling vacancies and allotting shares or stock to any proposed director or directors.

Com-
mittees of
directors.

45. Section 95 of the Companies' Clauses Consolidation Act 1845 shall be deemed to authorise the directors to appoint any one of their body as a committee for the purposes of passing transfers and sealing certificates of any shares or other securities of the Company and of executing any other minor powers exerciseable by the directors.

As to re-
muneration
of secretary.

46. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary.

Appoint-
ment of
proxies.

47. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any holder of shares or stock in the capital of the Company if duly authorised in writing may appoint a proxy to vote for and on behalf of the holder and for that purpose may execute on behalf of the holder the necessary form of proxy Provided that the instrument appointing the attorney shall be sent to the secretary at the same time as the instrument appointing the proxy.

Joint
holders.

48. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock in the capital of the Company any one of those persons may vote at any meeting either personally or by proxy in respect of the shares or stock as if he were

solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any shares or stock stands shall for the purposes of this section be deemed joint holders thereof.

A.D. 1932.

49. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be obligatory on the Company—

Register
and address
book of
share-
holders.

- (a) to keep separately a register of shareholders and shareholders' address book but in lieu thereof the Company may if they think fit keep one register only containing such particulars as are required by that Act to be entered in the register of shareholders and the shareholders' address book respectively; or
- (b) to authenticate by the affixing of their common seal or otherwise the register of shareholders or any register which the Company may keep in lieu thereof under the powers of this section.

50.—(1) The directors may close the register of transfers of any ordinary or preference shares or stock in the capital of the Company for a period not exceeding fourteen days previous to the payment of any dividend thereon and may close the register of transfers of debenture stock or mortgages of the Company for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and the directors may fix a day for the closing of any register which they are authorised to close under the provisions of this section Seven days' notice of the closing of any such register shall be given by advertisement in some newspaper published and circulating within the county of Nottingham.

Closing of
transfer
books.

(2) Any transfer of shares stock debenture stock or mortgages lodged for registration with the Company while the register of transfers relating to shares or stock

A.D. 1932. — or debenture stock or mortgages of the same class is so closed shall as between the Company and the person claiming under the transfer but not otherwise be considered as made subsequently to the payment of any such dividend or interest.

PART V.

RATES TOLLS AND CHARGES.

Maximum
conveyance
rates and
terminals.

51.—(1) In this section—

“the classification of merchandise” means the classification of merchandise as prescribed under section 29 of the Railways Act 1921 for the purposes of Part III of that Act and amended or modified from time to time by the railway rates tribunal under section 28 of that Act;

“merchandise” includes all goods and things comprised in the classification;

“the schedule of standard charges” means the schedule of standard charges from time to time prescribed under the Railways Act 1921 for the London Midland and Scottish Railway Company;

“the standard railway conveyance rates and terminals” means the standard rates for conveyance and standard terminals for merchandise by merchandise train specified in Part I of the schedule of standard charges and applicable to traffic elsewhere than in Scotland;

“the standard railway rates for returned empties” means the scale of charges (including terminals) for returned empties by merchandise train specified in Part IA of the schedule of standard charges;

“the standard railway rates for small parcels” means the scale of charges in respect of small parcels (other than returned empties) by merchandise train specified in Part V of the schedule of standard charges.

(2) On and after the appointed day the following A.D. 1932.
provisions shall have effect:—

- (i) the maximum rates and station and service terminals which the Company may charge in respect of merchandise when conveyed by the Company over the navigation shall be such rates and terminals as are from time to time ten per centum below the standard railway conveyance rates and terminals; and
- (ii) the rates which the Company may charge in respect of returned empties when conveyed by the Company over the navigation shall be such rates as are from time to time ten per centum below the standard railway rates for returned empties;

and accordingly the Charges Order so far as it relates to the maximum rates and terminals which the Company may charge in respect of merchandise and returned empties when conveyed by the Company over the navigation shall have effect as if—

- (a) the expression “the classification” meant the classification as defined in this section;
- (b) such maximum rates and terminals as are from time to time ten per centum below the standard railway conveyance rates and terminals (as defined in this section) were substituted for the maximum rates and terminals specified in Part I of so much of Table A in the schedule to the Charges Order as relates to the navigation; and
- (c) such rates as are from time to time ten per centum below the standard railway rates for returned empties were substituted for the rates specified in general section 22 (Rates for returned empties) in that schedule.

(3) On and after the appointed day the general sections in the schedule to the Charges Order shall in their application to the Company be further modified as follows:—

- (i) the words “merchandise comprised in Class A
“ of the classification or any of the following

A.D. 1932.

“ articles in Class B viz.” shall be omitted from the proviso to general section 2 (Maximum conveyance rates);

- (ii) paragraph (iv) of general section 7 (Special charges) shall be omitted and the following paragraph substituted therefor:—

“ Loading or unloading and covering or
“ uncovering merchandise comprised in
“ classes 1 to 6 (inclusive) of the classification
“ when conveyed by the Company over the
“ canal or merchandise comprised in any
“ class of the classification when conveyed
“ by a bye-trader over the canal;” and

- (iii) general section 21 (Classification of unenumerated articles) shall not apply to merchandise when conveyed by the Company over the navigation.

(4) Where merchandise is conveyed by the Company over the navigation in their own boats and the standard railway conveyance rates applicable to the same merchandise do not include the provision of trucks by the London Midland and Scottish Railway Company the Company may (notwithstanding anything in general section 2 (Maximum conveyance rates) of the Charges Order) charge for the use of their boats for conveying the merchandise the same charges as the said railway company may charge under the schedule of standard charges for the use of their trucks.

(5) On and after the appointed day the rates which the Company may charge for the conveyance by them over the navigation of small parcels (other than returned empties) not exceeding in weight three hundredweight shall be such rates as are from time to time ten per centum below the standard railway rates for small parcels and the provisions and regulations which shall from time to time apply to small parcels so conveyed by the Company shall as nearly as practicable be the same as the provisions and regulations which for the time being apply to the conveyance of small parcels by the London Midland and Scottish Railway Company by merchandise train and accordingly Part IV of Table A in the schedule to the Charges Order shall on and after the appointed day cease to apply to the Company.

52.—(1) In this section—

A.D. 1932.

“the classification” means the classification of merchandise traffic annexed to the schedule to the Charges Order;

—
Maximum
tolls and
wharfage
charges.

“merchandise” includes all goods and things comprised in the classification;

“bye-trader” means any person who conveys or desires to convey merchandise over the navigation and includes the Company when conveying merchandise over the corporation’s navigation but not otherwise;

“scale 1” and “scale 2” respectively mean scale 1 and scale 2 set out in Part II of so much of Table A in the schedule to the Charges Order as relates to the navigation.

(2) On and after the appointed day the Charges Order so far as it relates to the navigation shall be read and have effect as if—

- (i) the several maximum tolls specified in scale 1 were respectively increased in relation to merchandise of the classes mentioned in column 1 of the table set out at the end of this section when conveyed by bye-traders over any of the several sections of the navigation specified in column 2 of that table by the respective percentages specified in column 4 of the table opposite the name of such section of the navigation;
- (ii) the maximum toll of 0·75d. per ton specified in scale 2 were increased to 1·5d. per ton;
- (iii) the several maximum wharfage charges specified in scale 1 and scale 2 were respectively increased by fifty per centum of the respective amounts thereof; and
- (iv) the minimum toll per boat and the toll for an empty boat specified in special section (i) (Minimum toll per boat and toll for empty boat) of so much of the schedule to the Charges Order as relates to the navigation were respectively increased by fifty per centum of the respective amounts thereof as stated in that special section Provided that (a) when a boat passes through one or more locks on the section of the navigation above Trent Bridge the said minimum

A.D. 1932.

toll and the said toll for an empty boat shall be respectively increased by seventy-five per centum of the respective amounts thereof as so stated and (b) when sand or gravel is conveyed in a boat which passes through one or more locks on the section of the navigation between Averham Weir and Dunham Bridge the said minimum toll shall be increased by one hundred per centum of the amount thereof as so stated.

(3) On and after the appointed day section 39 (Lock tolls for vessels conveying merchandise) of the Act of 1906 shall be read and have effect as if the several lockage tolls specified in columns 2 and 3 of the table set out in subsection (1) of that section were respectively increased in relation to merchandise of the classes mentioned in column 1 of the table set out at the end of this section when conveyed by bye-traders in a vessel which passes through by or over any of the locks specified in column 3 of the last mentioned table by the respective percentages specified in column 4 of that table opposite the name of such lock.

Table referred to in the above section—

1	2	3	4
Classes of merchandise.	Section of navigation.	Lock.	Percentage increase.
Classes A B and C and 1 to 5.	Above Trent Bridge Nottingham.	- - -	75%
Classes A B and C and 1 to 5.	Between Trent Bridge Nottingham and Averham Weir.	Stoke Bardolph Gunthorpe Hazleford.	50%
Class A (except sand and gravel) classes B and C and 1 to 5.	Between Averham Weir and Dunham Bridge.	Cromwell -	50%
Sand and gravel -	Between Averham Weir and Dunham Bridge.	Cromwell -	100%

Restriction
on increase
of tolls and
wharfage
charges.

53.—(1) Notwithstanding anything in the last preceding section of this Act neither the Company nor the Nottingham Corporation shall unless and until they have obtained the consent of the Minister so to do increase any toll or wharfage charge in respect of merchandise conveyed by a bye-trader over or any toll in respect of an empty boat passing over the Company's navigation or

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the corporation's navigation respectively or any part thereof or any lockage toll in respect of any merchandise conveyed by a bye-trader in a vessel which passes through by or over any lock on the Company's navigation or the corporation's navigation respectively above the amount of such toll or charge which was in operation on the first day of January nineteen hundred and thirty-two.

(2) The Minister before giving any consent under this section shall cause an inquiry to be held with reference to the application for the consent.

(3) The provisions of subsections (2) and (3) of section 55 (Revision of maximum rates tolls and wharfage charges) of this Act shall apply with respect to any application for the consent of the Minister under this section and any inquiry with respect to any such application as though those subsections were re-enacted in this section.

(4) The Company shall keep open for public inspection at their head office at Nottingham and the corporation shall keep open for public inspection at the office of the town clerk of the city of Nottingham a book or list specifying the tolls wharfage charges and lockage tolls to which subsection (1) of this section applies and which were in operation by the Company and the Nottingham Corporation respectively on the first day of January nineteen hundred and thirty-two and the conditions attaching to any such tolls wharfage charges and lockage tolls.

54.—(1) So much of subsection (1) of section 38 (Lock tolls for pleasure boats) of the Act of 1906 and of the First Schedule to that Act as relates to tolls payable in respect of such pleasure boats as are specified in Parts I and II of the Second Schedule to this Act shall cease to apply to any such pleasure boats and in lieu thereof the provisions of subsection (2) of this section and of the Second Schedule to this Act shall have effect.

Lock tolls
for pleasure
boats.

(2) The Company in respect of locks on the Company's navigation and the Nottingham Corporation in respect of locks on the corporation's navigation may from time to time (notwithstanding anything in any previous Act relating to the Company and the Nottingham Corporation respectively) demand and receive in respect of such pleasure boats as are specified in Parts I and II of the

A.D. 1932. — Second Schedule to this Act passing through by or over locks on the navigation the tolls appointed by the Company and the Nottingham Corporation respectively but not exceeding the respective amounts specified in that schedule.

(3) Nothing in this section shall affect the provisions of the said section 38 of the Act of 1906 and of the First Schedule to that Act relating to the tolls payable in respect of such pleasure boats as are specified in classes 1 and 2 in the last mentioned schedule passing through or over any of the four locks named in subsection (2) of that section 38 or relating to annual payments.

Revision of
maximum
rates tolls
and wharf-
age charges.

55.—(1) If at any time after the expiration of one year from the appointed day it is represented by application in writing to the Minister—

(a) by any chamber of commerce or shipping or any representative body of traders or any person who is in the opinion of the Minister a proper person for the purpose; or

(b) by the Company or the Nottingham Corporation; that under the circumstances then existing the authorised rates (as defined in subsection (5) hereof) or any of them should be revised the Minister may (if he thinks fit) subject to the provisions of this section make an order revising the authorised rates referred to in the application or any of them and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until it expires or is revoked or modified by a further order of the Minister made in pursuance of this section. Provided that before making an order under this section the Minister shall cause an inquiry to be held with reference thereto in pursuance of the Board of Trade Arbitrations &c. Act 1874 as applied by this section.

(2) The provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of this section as if—

(a) the Minister were referred to therein in lieu of the Board of Trade;

(b) the person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of

Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or if the said advisory committee ceases to exist some persons with similar qualifications to be appointed for the purpose by an order of the Minister under section 2 of the said Act of 1874; and

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—

- (c) in section 4 of the said Act of 1874 the words “under the seal of the Minister of Transport” were substituted for the words “by writing” “under the hand of the President or of one of the secretaries of the Board.”

(3) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such documents and accounts as they may consider relevant and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths.

(4) Where upon any application for revision of the authorised rates or an authorised rate an order has been made or the Minister has decided not to make an order no further application for a revision of the rates or rate to which the application related shall be made within twelve months from the date of such order or decision.

(5) In this section—

“authorised rates” means and includes—

(i) the rates and charges which the Company are authorised to charge by section 51 (Maximum conveyance rates and terminals) of this Act;

(ii) the tolls and charges which the Company and the Nottingham Corporation are respectively authorised to charge by section 52 (Maximum tolls and wharfage charges) of this Act;

A.D. 1932.
—

(iii) the tolls which the Company and the Nottingham Corporation are respectively authorised to charge by subsection (2) of section 54 (Lock tolls for pleasure boats) of this Act and specified in the Second Schedule to this Act; and

(iv) the tolls in respect of such pleasure boats as are specified in classes 1 and 2 in the First Schedule to the Act of 1906 and the annual payments in respect of all classes of pleasure boats specified in that schedule which the Company and the Nottingham Corporation are respectively authorised to charge by section 38 (Lock tolls for pleasure boats) of the Act of 1906 and the said First Schedule to that Act;

“authorised rate” means any one of the authorised rates as above defined.

(6) An application under this section for the revision of the tolls and annual payments payable in respect of such pleasure boats as are specified in the said classes 1 and 2 may be made by the Nottingham Rowing Club and notice of any inquiry under this section with reference to an application for the revision of those tolls and annual payments shall be given to the said club.

Extension
of certain
provisions
as to tolls
of Act of
1906.

56. Section 40 (Penalty on forcing passage not having paid toll) and section 41 (Recovery of foregoing tolls) of the Act of 1906 shall extend and apply to any toll from time to time leviable by the Company under any Act or Order and to the Company with respect thereto as though the words “any Act or Order from time to time relating to the Company” were substituted in the former section for the words “that Act or the Act of 1894” and in the latter section for the words “this Act” where those words first occur in that section.

Provisions
as to
Newark
Navigation
Commis-
sioners.

57. If the lease to the Company of the Newark Navigation made in pursuance of the agreement set out in the schedule to the Act of 1887 be at any time terminated then as from the termination of the lease the Newark Navigation Commissioners may charge—

- (i) In respect of merchandise traffic conveyed by a bye-trader over the Newark Navigation and in respect of empty boats passing through one or

more locks on the Newark Navigation the tolls and wharfage charges and the minimum toll per boat and the toll for empty boats authorised by the Charges Order as from time to time amended and extended by section 52 (Maximum tolls and wharfage charges) of this Act or by any order made by the Minister under this Part of this Act varying those tolls and charges or any of them; and

A.D. 1932.

- (ii) in respect of pleasure boats passing through or over locks on the Newark Navigation the tolls specified in the Second Schedule to this Act in relation to such pleasure boats as are specified in Parts I and II of that schedule and the tolls specified in the First Schedule to the Act of 1906 in relation to such pleasure boats as are specified in classes 1 and 2 in that schedule or as regards any such tolls as aforesaid as may be specified in any order made by the Minister under this Part of this Act varying such tolls or any of them.

PART VI.

MISCELLANEOUS.

58. The Company and any company or body carrying on any canal undertaking may enter into and carry into effect agreements for or with respect to the management regulation interchange collection transmission or delivery of traffic upon or coming from or destined for the canals or docks of the contracting parties and the fixing collecting apportionment and distribution of the rates tolls and charges levied taken or arising in respect of such traffic subject to the provisions of any Act or Acts under which such traffic is authorised.

Agreements with other canal undertakers.

59. The Company shall in every year within three months after the close of their financial year or such later period as the Minister may allow send to the Minister a copy of the annual accounts of their undertaking.

Accounts to be sent to Minister.

60. Save as otherwise expressly provided by the Act of 1887 the Trent Navigation Act 1892 the Act of 1906 or this Act all offences against any of those Acts or this Act and all penalties forfeitures costs and expenses

Recovery of penalties &c.

A.D. 1932. — imposed or recoverable under any of those Acts or this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of demands.

61. Proceedings for the recovery of any demand made under the authority of any former Act relating to the Company or this Act (whether provision is or is not made for the recovery in any specified court or manner) may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Repeal.

62. The following sections of the Act of 1887 and the Act of 1906 are hereby repealed:—

Act of 1887—

Section 28 Number of directors;

Section 29 Qualification of directors;

Section 30 Quorum.

Act of 1906—

Section 26 As to appointment of a receiver.

Costs of Act.

63. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1932.

FIRST SCHEDULE.

AN AGREEMENT made this first day of June one thousand nine hundred and thirty-two between the TRENT NAVIGATION COMPANY (hereinafter called "the Company") of the one part and the RIVER TRENT CATCHMENT BOARD (hereinafter called "the Board") of the other part.

Stamp.

Two pounds
seven shillings
and
sixpence.

WHEREAS—

(1) By the Trent (Burton-upon-Trent and Humber) Navigation Act 1887 the Company were incorporated by the name of the Trent (Burton-upon-Trent and Humber) Navigation Company with power to purchase the undertaking of the then existing Trent Navigation Company and thereafter to carry into effect the powers theretofore vested in that Company and also the powers granted by that Act for improving the navigation of the river Trent between the place called Wilden Ferry and Gainsborough and for other purposes.

(2) Further powers were conferred on the Company by the Trent Navigation Act 1892 and the Trent Navigation Act 1906 and by the former Act the name of the Company was changed from the Trent (Burton-upon-Trent and Humber) Navigation Company to the "Trent Navigation Company."

(3) By the Nottingham Corporation (Trent Navigation Transfer) Act 1915 the portion of the Trent Navigation lying between Trent Bridge in the city of Nottingham and Averham Weir in the parish of Averham in the county of Nottingham was transferred to and vested in the Nottingham Corporation.

(4) The Board are the drainage board for the drainage district known as the River Trent Catchment Area the drainage of which district is directed to the river Trent and the Board are a body corporate constituted under the Land Drainage Act 1930.

(5) The Company are promoting in the present session of Parliament a Bill (hereinafter referred to as "the Bill") intituled "An Act to confer further powers on the Trent Navigation Company to make further provision with respect to the rates tolls and charges applicable to the Trent Navigation and the Newark Navigation and for other purposes."

A.D. 1932.

(6) By the Bill the Company seek power to make and maintain (inter alia) certain works described under the heading "Beeston lock works" and also certain works described under the heading "Wilford lock works" which latter works include a weir across the river Trent extending in a north-westerly direction from a point near the mouth of the Fairham brook and an embankment on the south-eastern side of the river Trent extending from the commencement of the said weir for a distance of about 400 yards.

(7) The said Beeston lock works and the said Wilford lock works are intended to be situate in or about that part of the river Trent which is "main river" of the Board within the meaning of the Land Drainage Act 1930 and over which the powers conferred by the Land Drainage Act 1930 on drainage boards are exerciseable solely by the Board.

(8) The Birmingham Corporation and the Derby Corporation under the powers vested in them by the Birmingham Corporation (Rivers Improvement) Act 1929 and the Derby Corporation Act 1930 respectively are executing and making certain river improvement works and conveniences connected therewith (hereinafter referred to as "the Birmingham and Derby works") in or in connection with the rivers mentioned in those Acts such rivers being tributaries of the said river Trent within the district of the Board and the additional rate of water discharge resulting from the Birmingham and Derby works may involve the execution in the future of works of river improvement below the sites of the Birmingham and Derby works for the drainage of lands within the district of the Board.

(9) Until the Birmingham and Derby works have been wholly or substantially completed and the effects thereof on the drainage of the district of the Board have been ascertained it is impracticable for the Board to complete the preparation of a comprehensive scheme of river improvement works which may be found to be requisite for the purpose aforesaid and it is essential that any such scheme or any works executed prior to the completion of such scheme should not be prejudiced or interfered with by the erection of any obstructions in the main river of the Board.

(10) The Board pursuant to the powers vested in them under the Land Drainage Act 1930 presented to the House of Commons a petition against the Bill in which petition it was alleged that the granting of the said power to the Company to make and maintain the said Wilford lock works and certain other provisions in the Bill would prejudicially affect the rights and interests of the Board and in particular that the construction of a solid weir across the river Trent at Wilford (part of the said Wilford lock works) would cause an obstruction to the free flow of the said river.

(11) The Bill has been passed by the House of Commons and is now pending in the House of Lords. A.D. 1932.

(12) The Board pursuant to their said powers in that behalf have presented to the House of Lords a petition against the Bill in which petition it is alleged (inter alia) that the provisions of the Bill will prejudicially affect the rights and interests of the Board in the manner aforesaid.

(13) The Company and the Board having regard to their respective rights and interests in the matters aforesaid and believing that co-operation between the parties should be secured have agreed to enter into such agreement as is hereinafter contained and the Board in consideration thereof have agreed to withdraw their petition to the House of Lords against the Bill.

Now in consideration of the premises and of the mutual obligations hereinafter contained it is agreed by and between the parties hereto as follows :—

1. The said Beeston lock works and the said Wilford lock works shall be withdrawn from the Bill and clause 9 (Company to execute certain dredging and other works) of the Bill as introduced into the House of Lords shall be omitted.

2. With a view to improving the drainage of the district of the Board the Company hereby consent (subject to the approval of the Minister of Agriculture and Fisheries and of the Minister of Transport being obtained thereto as required by section 40 of the Land Drainage Act 1930 the application for which approval shall be made by the Board and supported by the Company) to enter into an arrangement with the Board for the alteration or improvement by the Board of the Sawley and Beeston weirs of the Company (which said weirs are situate in the " main river " of the Board) by—

(a) the construction in those weirs or either of them of such sluices; or

(b) the re-siting of those weirs or either of them in such position and with such sluices therein; and

(c) the execution of such other works incidental thereto;

as may be agreed between the parties or failing agreement determined by an arbitrator as in this agreement provided Any agreement or award of an arbitrator made in pursuance of this clause shall include particulars as to the re-siting (if any) of the said weirs or either of them and the design number and position of sluices and the regulation thereof:

Provided that—

(1) If any difference between the Company and the Board as to the re-siting of the said weirs or either of them be referred to an arbitrator the arbitrator shall in determining his award pay due regard to the safety of navigation :

A.D. 1932.
—

- (2) The cost of the construction maintenance and operation of any sluices constructed or of weirs re-sited in pursuance of an arrangement under this clause and of any works reasonably necessitated thereby shall be borne by the Board :
- (3) No responsibility for nor the cost of any repairs to the banks of the river Trent rendered necessary by the construction of sluices or the re-siting of the said weirs or either of them shall be borne by the Company who shall be indemnified therefrom by the Board :
- (4) On such arrangement being entered into the Board shall (subject to unavoidable accident drought or other act of God and unless otherwise agreed between the Company and the Board) maintain at the said weirs for the purposes of navigation levels of water not less than 97 feet above Ordnance datum (old) at the Sawley weir and 80.75 feet above Ordnance datum (old) at the Beeston weir.

3. With a view to improving the drainage of the district of the Board the Company hereby agree to support the Board in any negotiations or arrangements which may lawfully be entered into by the Board with the owners of or any other persons having interests in the Thrumpton (sometimes called Soar-Mouth) weir situate between the said Sawley and Beeston weirs for the alteration or improvement of the said Thrumpton weir by the construction therein of sluices or the re-siting of such weir with sluices therein and the execution of other works incidental thereto :

Provided that—

- (1) If any alteration or improvement of the said weir involves a re-siting thereof further upstream the consent of the Company to the new site shall be obtained by the Board which consent shall not be unreasonably withheld and if any question arises whether the consent of the Company is unreasonably withheld that question shall be referred to and determined by an arbitrator as in this agreement provided :
- (2) If any works or alteration or improvement of the said weir be executed by the Board the Company will afford all reasonable facilities to the Board in respect of any such works :
- (3) Nothing in this clause shall be deemed to prejudice or take away any rights exerciseable by the Board under the powers vested in them to take steps to effect or cause to be effected alterations of the said weir.

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4. With a view to improving the drainage of the district of the Board the Company so far as they lawfully can or may hereby agree to support the Board in any negotiations or arrangements which may be lawfully entered into by the Board with the owners of or any other persons having interests in the Colwick weir situate within that part of the river Trent within the navigation of the Nottingham Corporation for the alteration or improvement of the said Colwick weir by the construction therein of sluices or the re-siting of such weir with sluices therein and the execution of other works incidental thereto.

5. The Company shall for the protection of the Board insert in the Bill such clauses and amendments as have been agreed between the Company and the Board.

6. The Board will pay to the Company the sum of one thousand five hundred pounds by way of contribution to the expenses incurred by the Company in relation to the promotion of so much of the Bill as related to the Beeston lock works and the Wilford lock works.

7.—(1) If at any time after the prescribed date (as hereinafter defined) the Company desire to promote in Parliament a Bill or Bills for power to construct the Beeston lock works and a weir at Wilford or elsewhere within the Company's navigation together with any lock and other works appurtenant to such weir or for power to construct some of such works as aforesaid they shall before depositing such Bill or Bills in Parliament send to the Board plans and sections of the works proposed to be authorised by such Bill or Bills and if the Board dispute the necessity for any weir comprised in such works or for any other reason do not approve such plans and sections such dispute and the plans and sections shall be referred to and determined by an arbitrator as in this agreement provided. If any award of an arbitrator made in pursuance of this clause shall provide for any weir then such award shall include particulars as to the type of such weir the design number position and maintenance of any sluices therein and the regulation of the sluices.

(2) If any dispute as to the necessity for any weir and the plans and sections of any works to be included in any such Bill or Bills as aforesaid are referred to an arbitrator the arbitrator shall have due regard to the then ascertained effects of the Birmingham and Derby works and the then drainage state of the "main river" of the Board as well as to what works are necessary or desirable for the improvement of the Company's navigation.

(3) If after any plans and sections have been agreed or determined by an arbitrator in pursuance of the foregoing provisions of this clause the Company promote in Parliament a Bill or Bills for power to construct works in accordance with the

A.D. 1932. — plans and sections so agreed or determined the Board will support the promotion of such Bill or Bills and pay to the Company one-half of the Company's costs of the promotion thereof.

(4) For the purposes of this clause the "prescribed date" means (subject to the provisions of paragraph (5) of this clause) the date when the effects of the Birmingham and Derby works on the "main river" of the Board below those works have been ascertained or the date of expiry of the period of four years from the passing into law of the Bill (being promoted by the Company in the present session) whichever date shall be the earlier.

(5) The said period of four years is based on the assumptions that—

- (a) one or other of the Birmingham or Derby works may not be substantially completed within two years from the date of the passing into law of the Bill; and
- (b) the said period reasonably assures one year for observation and ascertainment of the effects of the Birmingham and Derby works when substantially completed.

If those assumptions are found to be wrong the Board shall have the right to apply for the Company's consent to an extension of the said period of four years which consent shall not be unreasonably withheld and if any question arises under this paragraph whether the consent of the Company is unreasonably withheld that question shall be referred to and determined by an arbitrator as in this agreement provided and any date consented to by the Company or determined by an arbitrator shall be the prescribed date within the meaning of paragraph (1) of this clause.

8. Subject to the provisions of clause 9 hereof the Company may include in any Bill or Bills to be promoted by them in pursuance of clause 7 hereof power to construct any works additional to the works mentioned in that clause and any other powers or provisions which they may think fit but if any such additional works powers or provisions be included in any such Bill or Bills the Board shall not be required under clause 7 hereof to pay so much of the cost incurred by the Company in the promotion of such Bill or Bills as is attributable to the inclusion of such additional works powers or provisions.

9. The Company shall not without such agreement or such award of an arbitrator as in clause 7 hereof provided promote any Bill or Bills for power to construct a weir or weirs at Wilford or elsewhere within the Company's navigation.

10. Any difference which may arise between the Company and the Board under this agreement (save as to the construction thereof) and any matter or thing by this agreement referred to or required to be determined by an arbitrator shall be referred

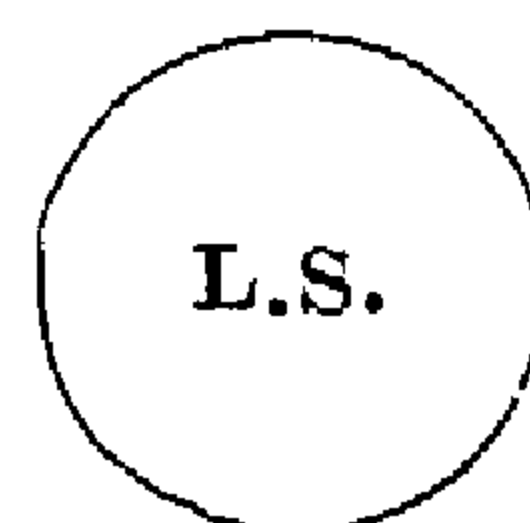
to and determined by an arbitrator to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference and determination. A.D. 1932.
—

11.—(1) This agreement is subject to the sanction of Parliament and shall be scheduled to and confirmed by the Bill.

(2) This agreement is also subject to such alterations as Parliament may think fit to make therein but if either House of Parliament make any material alterations in this agreement it shall be competent to either party to withdraw from this agreement and thereupon the agreement shall become null and void and the Company shall withdraw from the Bill this agreement and any clause to confirm it.

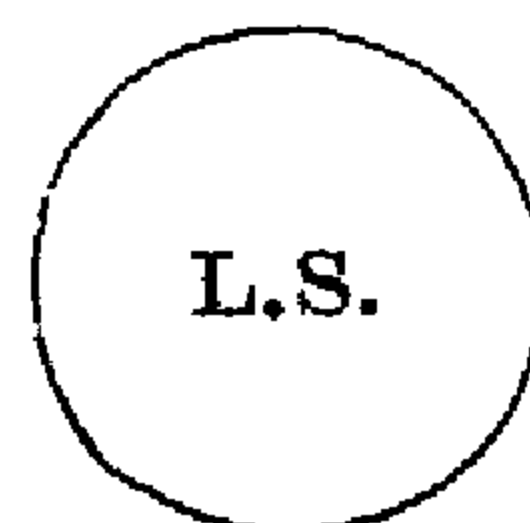
In witness whereof the Company and the Board have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Trent Navigation Company was hereunto affixed }
in the presence of



ERNEST JARDINE }
F. RAYNER } Directors.
S. F. BAGSHAW Secretary.

The common seal of the River Trent Catchment Board was hereunto affixed }
in the presence of



H. FITZHERBERT WRIGHT
Chairman of the Board.
JOHN HIRST
Clerk of the Board.

SECOND SCHEDULE.

LOCKAGE TOLLS ON CERTAIN PLEASURE BOATS.

PART I.

MECHANICALLY PROPELLED PLEASURE BOATS.

For every pleasure boat propelled by steam electricity or other mechanical power and passing through by or over any of the several locks specified in the first column of the following

A.D. 1932. table the tolls specified in the second and third columns of that table opposite the name of such lock :—

Lock.	Toll payable in respect of boats 20 ft. long and upwards.	Toll payable in respect of boats under 20 ft. long.
	<i>s. d.</i>	<i>s. d.</i>
Sawley main lock - - -	2 0	1 6
Cranfleet - - -	2 0	1 6
Beeston - - -	2 0	1 6
Holme main lock - - -	2 0	1 6
Stoke Bardolph - - -	2 0	1 6
Gunthorpe - - -	2 0	1 6
Hazleford - - -	2 0	1 6
Newark Town (both before and after the construction of the new lock authorised by this Act).	1 0	1 0
Newark Nether - - -	1 0	1 0
Cromwell - - -	2 0	1 6

PART II.

HOUSE-BOATS.

For every house-boat passing through by or over any locks on the navigation—

If not exceeding fifty feet in length . Three shillings for each lock.

If exceeding fifty feet in length ... Five shillings for each lock.

PART III.

GENERAL.

The tolls mentioned in this schedule are for passing once through by or over a lock and returning on the same day.

Every pleasure boat to which this schedule applies and carried in or upon another vessel through by or over any lock shall be charged as if separately navigated through by or over such lock but to an extent not exceeding one-third of the maximum toll authorised by this schedule.

Printed by EYRE AND SPOTTISWOODE LIMITED,

FOR

WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., O.B.E., the King's Printer of Acts of Parliament.

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